

RESTRAINT AND SECLUSION OF STUDENTS

Maintaining a safe and productive environment for student learning is a high priority of Loudoun County Public Schools (LCPS) for both students and staff. A multi-tiered systemic approach, to include Positive Behavioral Interventions and Supports (PBIS), shall be used to address the needs of students with behavior challenges. Physical restraint and seclusion safety procedures shall only be used consistent with this policy and associated [Regulation 5345](#). LCPS recognizes restrictive emergency procedures are used as a last resort. The intent of this policy is to ensure that every effort is taken to eliminate the use of restraint. LCPS prohibits the use of seclusion as defined in this policy and shall focus on ensuring communication supports, trauma-informed practices, and the elimination of exclusionary discipline.

A. Authorized Emergency Safety Procedures.

Procedures for the use of physical restraint apply to all students when the student is an imminent danger to self or others. Physical restraint is not permitted except as an emergency safety procedure that is used as a last resort in response to situations where the student's behavior poses a threat of imminent danger or serious physical harm to self or others. Physical restraint shall be discontinued as soon as the imminent risk of serious physical harm or injury to self or others presented by the emergency situation has dissipated.

B. Definitions Related to Permitted and Prohibited Actions.

1. Aversive Stimuli means interventions that are intended to induce pain or discomfort to a student for the purposes of punishing the student or eliminating or reducing maladaptive behaviors. (Code Ref: [8VAC 20-750-10](#))
2. Corporal punishment as defined in Section [22.1-279.1](#) of the Code of Virginia means the infliction of, or causing the infliction of, physical pain on a student as a means of discipline.
3. Mechanical Restraint means the use of any material, device, or equipment to restrict a student's freedom of movement. This term "mechanical restraint" does not include devices implemented by trained school personnel or used by a student that have been prescribed by an appropriate medical or related service professional and are used with parental consent and for the specific and approved purposes for which such devices were designed, such as:
 - a. Adaptive devices or mechanical supports used to achieve proper body position, balance, or alignment to allow greater freedom of mobility than would be possible without the use of such devices or mechanical supports;

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- b. Vehicle restraints, including seat belts when used as intended during the transport of a student in a moving vehicle;
- c. Restraints for medical immobilization; or
- d. Orthopedically prescribed devices that permit a student to participate in activities without risk of harm;
- e. High chairs and feeding stations used for age or developmentally appropriate students; or
- f. Changing tables.

4. Pharmacological Restraint means a drug or medication used on a student to control behavior or restrict freedom of movement that is not (i) prescribed by a licensed physician or other qualified health professional under the scope of the professional's authority for the standard treatment of a student's medical or psychiatric condition and (ii) administered as prescribed by a licensed physician or other qualified health professional acting under the scope of the professional's authority.

5. Physical Restraint means a personal restriction that immobilizes or reduces the ability of a student to move freely. The term "physical restraint" does not include (i) briefly holding a student in order to calm or comfort the student; (ii) holding a student's hand or arm to escort a student safely from one area to another; or (iii) the use of incidental, minor, or reasonable physical contact or other actions designed to maintain order and control.

6. Prone Restraint means a physical restraint with an individual lying face down.

7. Seclusion means the involuntary confinement of a student alone in a room or area from which the student is physically prevented from leaving until the student no longer presents imminent danger to self or others. Provided that no such room or space is locked, the term "seclusion" does not include:

- a. In-school suspension;
- b. Detention;

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- c. Time-out, which means a behavioral intervention in which a student is temporarily removed from the learning activity but in which the student is not confined;
- d. Student-requested breaks in a different location in a room or in a separate room;
- e. Removal of student for a short period of time from room or separate area of room to provide the student with opportunity to regain self-control, so long as student is in the setting from which the student is not physically prevented from leaving;
- f. Removal of student for disruptive behavior from a classroom by a teacher, as provided in Section 22.1-276.2 of the Code of Virginia;
- g. Confinement of a student alone in a room or area from which the student is physically prevented from leaving during the investigation and questioning of the student by school personnel regarding student's knowledge of or participation in events constituting a violation of the student code of conduct, such as a physical altercation, or an incident involving drugs or weapons;
- h. Removal of students and staff in the face of imminent danger in a classroom space, where the student in crisis is not left alone in the classroom.

- 8. Supine Restraint means a physical restraint with an individual lying face up.

C. Prohibited Practices.

The following measures are prohibited:

- 1. Seclusion of students as defined in this policy.
- 2. Use of physical restraint for students under the age of 6.
- 3. Use of prone restraints (i.e., lying face down) or any other restraints that restrict a student's breathing or harm the student.
- 4. Use of supine restraints (i.e., lying face up).
- 5. Use of aversive stimuli.

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6. Use of corporal punishment.
7. Use of mechanical restraints.
8. Use of pharmacological restraints.
9. Use of any measure that restricts a student's breathing or harms the student.
10. Use of physical restraint or seclusion (i) as punishment or discipline; (ii) as a means of coercion or retaliation; (iii) a convenience; (iv) to prevent property damage, or (v) in any manner other than as provided for in 8 VAC 20-750-40 and 8 VAC 20-750-50.
11. Use of seclusion rooms or freestanding units not meeting the standards set forth in 8 VAC 20-750-50 et seq.
12. Use of restraint when medically or psychologically contraindicated, as stated in documentation by the Individualized Education Program (IEP) team, the student's Section 504 team, school professionals, or by a licensed physician, psychologist, or other qualified health professional under the scope of the professional's authority.

Notwithstanding the above, nothing in this policy shall be construed to prohibit physical restraint under the conditions outlined in 8 VAC 20-750-40 and 8 VAC 20-750-50.

D. Procedures for the Appropriate Use of Physical Restraint.

1. Physical restraint shall only be used in an emergency (i.e., a sudden, urgent, usually unexpected situation) that requires a person(s) to take immediate action to avoid serious physical harm, injury, or death to the student or others when there is imminent danger. Less restrictive interventions should be employed first unless in an emergency when, in reasonable judgment of the particular school personnel implementing physical restraint in an emergency situation, less restrictive intervention would be judged to be ineffective or historically have not been successful with individual students.

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2. Physical restraint is not a teaching procedure or behavioral intervention and shall not be administered as punishment or discipline, a means of coercion or retaliation, a convenience, to prevent property damage or to address behaviors for non-emergency reasons, such as noncompliance, disrespect, insubordination, disobedience, misuse of property, disruption, or threats.
3. Unless a student's damage to property creates an imminent risk of serious physical harm or injury to the student or others, the damage of property does not itself indicate an imminent risk of serious physical harm or injury and shall not be the justification for the use of restraint of a student.
4. Following the use of restraint, the student must be seen by a health clinic staff member.
5. Physical restraint should only be conducted by trained school-based personnel with at least one additional staff member present and in line of sight.
6. Physical restraint shall be discontinued as soon as the imminent risk of serious physical harm or injury to self or others presented by the emergency situation has dissipated.
7. As set forth in 8 VAC 20-750-80, in the initial development and subsequent review and revision of a student's IEP or Section 504 plan, the student's IEP or Section 504 team shall consider whether the student displays behaviors that are likely to result in the use of physical restraint. If the IEP or Section 504 team determines that future use is likely, the team shall consider, among other things, the need for (i) an Functional Behavioral Assessment (FBA); (ii) a new or revised Behavioral Intervention Plan (BIP) that addresses the underlying causes or purposes of the behaviors as well as de-escalation strategies, conflict prevention, and positive behavioral interventions; (iii) any new or revised behavioral goals; and (iv) any additional evaluations or reevaluations.
8. If physical restraint is used upon a student whose primary mode of communication is sign language or an augmentative and alternative mode (AAC), the student should be permitted to have a hand(s) free of restraint with access to their communication device for a brief period of time, unless staff determines that such freedom appears likely to result in harm to the student or others.

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E. Training.

Per 8 VAC 20-750-100, LCPS shall:

1. Ensure that all school personnel receive training that focuses on skills related to positive behavior support, conflict prevention, de-escalation, and crisis response, including follow-up support and social-emotional strategy support for students, staff, and families;
2. Ensure that all school personnel receive initial training regarding the regulations, policies, and procedures governing the use of physical restraint and prohibition of seclusion. While the use of seclusion is a prohibited practice under this policy, staff will receive training on the definition, use of, and procedures for the appropriate use of seclusion outlined in the accompanying regulation to this policy.
3. Provide annual advanced training in the use of physical restraint for at least one administrator in every school building and for school personnel assigned to work with any student whose IEP or Section 504 team determines the student is likely to be physically restrained and;
4. Ensure that any initial or advanced training is evidence-based.
5. Ensure that all training provided to school personnel under this Subsection is clearly identified on the LCPS website.

F. Monitoring and Intervention. The Department of Student Services shall regularly review the use of physical restraint and seclusion. The Department of Student Services will provide training, support, monitoring, and accountability for schools to promote consistent implementation of this Policy and its accompanying regulation. The Principal or designee shall regularly review the use of physical restraint and seclusion at their school.

G. Notification and Awareness.

In cases of restraint or seclusion incidents:

1. The Department of Student Services shall ensure annual notification of this policy and associated regulation.

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2. The student's case manager or school administrator shall make reasonable efforts to ensure that direct contact with the parent/guardian, either in person or through telephone conversation, or other means of communication authorized by the parent/guardian, such as email, to notify the parent/guardian of the restraint or seclusion and any related first aid on the day the incident occurred.

3. If the restraint or seclusion has occurred outside the regular school day, notification shall be made as soon as practicable in compliance with LCPS' school crisis/emergency management, and medical emergency response plan.

H. Exceptions.

1. LCPS staff members will not be subject to adverse employment action on the basis that those LCPS staff members, who are determined to have had, in good faith, removed students and staff in the face of imminent danger in a classroom space where a student in crisis may have been left alone in the room until the student no longer presents imminent danger to self or others, and who have done so in accordance with the training staff members receive on the definition, use of, and procedures of the appropriate use of seclusion in the accompanying regulation to this policy.

2. Nothing in this policy or corresponding regulation shall be construed to modify or restrict:

- a. The initial authority of teachers to remove students from a classroom pursuant to Section 22.1-276.2 of the Code of Virginia;
- b. The authority and duties of school resource officers and school security officers, as defined in Section 9.1-101 of the Code of Virginia, except to the extent governed by a memorandum of understanding between the local law enforcement agency and LCPS;
- c. The authority of the Virginia Department of Juvenile Justice, with regard to students in its custody at any of its sites or in any of its programs; or

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- d. The civil immunity afforded teachers employed by local school boards for any acts or omissions resulting from the supervision, care, or discipline of students when such acts or omissions are within such teacher's scope of employment and are taken in good faith in the course of supervision, care, or discipline of students, unless such acts or omissions were the result of gross negligence or willful misconduct, as provided in Section 8.01-220.1:2 of the Code of Virginia.

- I. Data Collection and Reporting. In accordance with the associated regulation, each instance of physical restraint and seclusion shall be documented and recorded in the LCPS Student Information System. The Assistant Superintendent for Student Services shall publicly report physical restraint and seclusion quantitative data on an annual basis. The annual report shall contain the total number of physical restraint and seclusion instances as reported by schools.

Adopted: 1/8/19

Current Revision: 2/25/25

Leg. Refs: Code of Virginia [8.01-220.1:2](#), [9.1-101](#), [22.1-253.13:7](#), [22.1-276.2](#), [22.1-279.1](#), [22.1-16](#), [8 VAC 20-81-160](#), [8 VAC 20-750](#), [8 VAC 20-750-5](#), [8 VAC 20-750-40](#), [8VAC 20-750-50](#), [8 VAC 20-750-80](#), [8 VAC 20-750-100](#) [8 VAC 20-750-10](#), [8 VAC 20-750-20](#), [8 VAC 20-750-30](#), [8 VAC 20-750-60](#), [8 VAC 20-750-70](#), [8 VAC 20-750-90](#), [8 VAC 20-750-110](#)

Cross Ref.: [Policy 8205](#), Discipline Authority, [Policy 8280](#), Corporal Punishment Prohibited